shown above, the NSA was acting within at least the letter of the law, under congressional and judicial oversight, in accordance with the instructions of an elected president. What Snowden claims as motivation was the trajectory—that a future government would abuse the collection programmes to create an Orwellian 'surveillance state' which individuals would be afraid to challenge for fear of drawing attention to themselves.

That is a political objection. So Snowden, even without disclosing classified information, could have approached the lawmakers, especially in the Senate, who have been publicly critical of what they see as the NSA's excessive reach. He did not. He could have resigned from his job and applied for a job at one of the many think-tanks and campaigns which worry about privacy in the digital age. By providing stolen secrets he has certainly stimulated a far more intense public debate than mere assertions of an ex-employee would have done. But the quantity and quality of information stolen and published goes far beyond anything necessary to start a debate. It looks more like material for a global anti-American campaign.

Even without going through the legal channels available, Snowden could have made it easy for people to defend him as a genuine whistleblower. He could simply have taken and leaked the FISA court order showing that Verizon, the American mobile phone company, has to routinely hand over its customers' phone records.[72] To be sure, this collection of meta-data is legal and the order was a routine renewal of a programme which has been going for years. But it was still shocking. People know that their phone companies can do this (and may be glad about it: it helps locate stolen mobile phones). They may be happy that police can analyse the data on a case-by-case basis—for example to find out who has been present at a crime scene. But there are reasonable grounds for worrying about a single government agency